



JAMAICA CONSTABULARY FORCE
Criminal Investigation Branch Proactive Investigation Unit Standard Operating Procedures

Title: JCF Criminal Investigation Branch Proactive Investigation Unit Standard Operating Procedures	Number: JCF/CIB-HQ/PR/SSs/0009/2021
Effective Date: October 14, 2024	Pages: 5
Review Date: October 11, 2024	Distribution: Force-wide
Revision # 1	Process Owners: Criminal Investigation Branch HQ
Rescinds: October, 2021	
Authors: CIB HQ	Owner: JCF
First Published: October 7, 2021	Review: Biennially

JCF Criminal Investigation Branch Proactive Investigation Unit Standard Operating Procedures

1. Purpose

The Proactive Investigative Unit (PIU) is a geographic unit which has the mandate to conduct professional and effective proactive investigations, in relation to all organized criminal syndicates in order to disrupt, dismantle, and prosecute the criminal and their co-conspirators as well as to forfeit their assets.

2. Background

The need for the Jamaica Constabulary Force (JCF) to sustain the reduction in crime has necessitated the implementation of the Proactive Investigative Unit (PIU). Consistent with the Concept paper, the unit will target the higher level criminals, gang members, beneficiaries and financiers of criminal activities. The list which is not an exhaustive one includes money laundering, drug trafficking, extortion, lottery 'lotto' scams, illegal gaming, trading in counterfeit goods, prostitutions are all crimes of greed from which criminal syndicates obtain benefits which are used to continue their criminal enterprise. Therefore, the objective of the PIU is to complement the work of OCID by conducting proactive investigations which could lead to the identification, investigation and prosecution of gangs, money launderers and other organized criminal syndicates. Additionally, investigating and prosecuting higher level organized criminal gang elements under the POCA and other related Acts, will remove the veil anonymity provides for most of these criminals who continue to operate as if they are legitimate business persons.

3. Reporting Responsibilities

The Sub-officer in charge of the PIU will report directly to the Crime Officer. The Crime Officer should report to the Commanding Officer of OCID in relation to money laundering and financial investigations. Other matters should be reported through the standard reporting structure of the JCF.

4. Case Management System

Minimum Standards:

- All case files should be completed to the specification and standards as outlined with the JCF Case Management System / Established Control System¹¹:
- Full compliance with the case file check list and work closely with NIB/OCID and other financial investigators and/or Investigating Officers.
- An original case file should be maintained with a minimum of two copies.

¹¹ ECS – the sensitive nature of financial crime investigations would require that access to these case files are minimized to a core group of persons.

- Where charges are laid or legal advice is sought the initial submission to the Clerk/DPP will include copies of the original written statement(s) together with typed copies; schedule of exhibits, a brief summary of the facts, together with the identification of any other issues/aspects that may require advice.
- Charges are only to be made AFTER advice from OCID/Crime Officer/DDI/DPP and after a formal interview² (*Contemporaneously recorded questions and answers*) has been conducted.
- Once an interview has been conducted a FURTHER review will be done by the head of the PIU to ensure that further questions/investigations are not necessary PRIOR to any charges being made.
- The Team leader will retain the original and copy case files, within the Registry. When requested by OCID, Clerk of Courts, RM or the DPP the original file will be supplied, against a written receipt for such.

5. Transfer of Files

All files designated for transfer must be accompanied by a cover note outlining reasons for transfer and other issues germane to the matter under investigations – directly to the intended recipient under the signature of the Crime Officer or his nominee.

6. Case Conferences

The liaison with all parties involved in proactive investigation is invaluable at every stage of the process. In fact, collaboration with investigators and Crown Counsel is paramount in securing a conviction at Court and can only be accomplished by effective communication, presentation of quality paperwork or documentation and with full disclosure of all the facts. This may take place **BEFORE** any charges are laid and as such records of all such meetings must be kept, together with any actions by the investigating officer **or** Commanding Officer. It is the responsibility of the team leader and investigating officer to ensure that this conference takes place when required and without delay.

OCID should be contacted in order to give support and expertise in all major conferences. It should be noted that the purpose of this conference is to ensure that all issues likely to affect the trial are identified and fully discussed, with prompt action taken to resolve them prior to any trial.

² Q&A consistent with the Judges Rule or financial questionnaires

The issues to be discussed will include: -

- Charges to be laid or charges laid, conflicts and gaps in the evidence
- What exhibits will be used e.g. the relevance of the contemporaneous Question & Answer records.
- Any other factors that could affect an effective trial.

7. Meetings

PIU meetings will be held on a bi-weekly basis and will meet monthly with the Crime Officer; the meetings should be recorded.

8. Media Releases

The media is regarded as a potent tool in the arsenal of law enforcement and thus should be used scrupulously to supplement law enforcement efforts. In order to ensure accuracy, timeliness and effective communication the JCF's communication policy will be observed. The media releases will be led by the **Crime Officer** in consultation with OCID, NIB and the CCN. As investigations progress, a review of the lead must be undertaken. In cases of difficulty or in high profile incidents, the Director of Communications **MUST** be consulted without delay.

At all stages of a prosecution, an update will be provided to the CCN representative. This is to provide accurate and timely information should any requests be made and to ensure that the media strategy is effectively implemented. All the activity of the PIU should be harnessed in a positive representation of the activities being undertaken by the staff.

9. Post-trial press release

A brief overview of the case will be prepared for the post trial media release in consultation with OCID and CCN representatives. The media release will be updated by the **Crime Officer** to include all the significant events identified during the investigation/trial, together with the outcome(s) (*e.g. support provided to secure witnesses, key events, degree of violence used, new investigative methods used etc.*) to provide a positive message for the public/police interest.

Procedures in the proactive investigative process:

- Identify target(s)
- Identify offence
- Verify reports/information

JCF Criminal Investigation Branch Proactive Investigation Unit Standard Operating Procedures

- Collate data
- Analyse and interpret data
- Create link chart(s)
- Build dossier on target(s)
- Develop case files
- Create intelligence casing
- Store data/information in hard and soft copy format
- Share data with authorized units within JCF
- Conduct regular case conferences
- Conduct regular briefing and debriefing sessions
- Submit completed case files to the court within 24 hours
- Conduct regular research on legislations and emerging criminal trends
- Refer to existing JCF Standard Operating Procedures when necessary
- Liaise with the Anti-Corruption Branch in investigations involving the police and public officials

JCF Criminal Investigation Branch Proactive Investigation Unit Standard Operating Procedures